# UNION AND TERRITORY

**ARTICLES 1-4: THE TERRITORIAL → ARTICLE 3 PROCEDURE: CONSULTATION → ARTICLE 2, ARTICLE 3 → FIRST SCHEDULE AS A → INTEGRATION AND LINGUISTIC REORGANISATION → POST-1956 MAP-MAKING: REORGANISATION, CREATION**

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

● PRIMARY CORE FLOW ● SUBORDINATE EXTRA ● APPROVAL / REVIEW

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

Approval: FALSE • Pending user review • source generation g12 and all prior artifacts unchanged

00

## STAGE 00 ARTICLES 1-4: THE TERRITORIAL POWER HIERARCHY

ARTICLES 1-4 · THE TERRITORIAL POWER HIERARCHY · ARTICLE 1 · INDIA, THAT IS BHARAT · UNION OF STATES TERRITORY · STATES + UNION TERRITORIES + ACQUIRED TERRITORIES · ARTICLE 2 · PARLIAMENT ADMITS INTO UNION OR ESTABLISHES NEW STATES

ARTICLE 1

India, that is Bharat = Union of States territory + States + Union territories + → ARTICLE 2 → Parliament admits into Union or establishes new States

### CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 1
- India, that is Bharat = Union of States territory + States + Union territories + acquired territories
- ARTICLE 2

### POWER / PROCEDURE

- Parliament admits into Union or establishes new States
- ARTICLE 3
- Parliament forms new States and alters area, boundary or name

### CHECK / LIMIT

- ARTICLE 4 consequential First/Fourth Schedule changes and supplemental provisions laws under Articles 2 and 3 are not amendments under Article 368
- FIRST SCHEDULE = living ledger of States and Union territories
- PRINCIPLE: States have constitutional status, but no right to secede.

### FEDERAL / RIGHTS IMPACT

- Parliament admits into Union or establishes new States

**MECHANISM / VERDICT —** (OPENING): India is a constitutionally indestructible Union whose internal State map remains adaptable under Articles 1–4; the phrase 'indestructible Union of destructible States' is an analytical formula, not constitutional text.

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: (OPENING): India is a constitutionally indestructible Union whose internal State map remains adaptable under Articles 1–4; the phrase 'indestructible Union of destructible States' is an analytical formula, not constitutional text.**

01

## STAGE 01 ARTICLE 3 PROCEDURE: CONSULTATION WITHOUT A STATE VETO

ARTICLE 3 PROCEDURE · CONSULTATION WITHOUT A STATE VETO · PRESIDENT'S RECOMMENDATION REQUIRED · BILL AFFECTS AREA, BOUNDARY OR NAME OF A STATE? · PRESIDENT REFERS BILL TO AFFECTED STATE LEGISLATURE · +-- SPECIFIES TIME FOR EXPRESSING VIEWS · +-- MAY EXTEND THAT TIME · +-- PARLIAMENT IS NOT BOUND BY THOSE VIEWS

PRESIDENT'S RECOMMENDATION REQUIRED → BILL affects area, boundary or name of a State? → YES → President refers bill to affected State legislature → +-- specifies time for expressing views → +-- may extend that time

### CONSTITUTIONAL BASIS / ARTICLE

- PRESIDENT'S RECOMMENDATION REQUIRED
- BILL affects area, boundary or name of a State?
- YES → President refers bill to affected State legislature

### POWER / PROCEDURE

- +-- specifies time for expressing views
- +-- may extend that time
- +-- Parliament is not bound by those views

### CHECK / LIMIT

- NO State affected → proviso referral does not arise in that form
- PARLIAMENT passes by ordinary legislative majority
- PRESIDENTIAL ASSENT → territorial and Schedule changes

### FEDERAL / RIGHTS IMPACT

- State view is required consultation, not consent.

**MECHANISM / VERDICT —** (PROCEDURE): Article 3 constitutionalises consultation, not consent: prior presidential recommendation and State-legislature reference are mandatory where the proviso applies, views do not bind Parliament, no fresh reference is required for every amendment, and a Union Territory has no equivalent proviso right.

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: (PROCEDURE): Article 3 constitutionalises consultation, not consent: prior presidential recommendation and State-legislature reference are mandatory where the proviso applies, views do not bind Parliament, no fresh reference is required for every amendment, and a Union Territory has no equivalent proviso right.**

02

## STAGE 02 ARTICLE 2, ARTICLE 3 AND FOREIGN-TERRITORY TRANSFER ARE DISTINCT

ARTICLE 2, ARTICLE 3 AND FOREIGN-TERRITORY TRANSFER ARE DISTINCT · QUESTION CONSTITUTIONAL ROUTE ADMIT OR ESTABLISH NEW STATE ARTICLE · BERUBARI UNION, 1960 CESSION OF INDIAN TERRITORY CANNOT BE · MAGANBHAI ISHWARBHAI, 1969 BOUNDARY SETTLEMENT DIFFERS FROM CESSION. · 100TH AMENDMENT, 2015 CONSTITUTIONAL ROUTE USED FOR INDIA-BANGLADESH LAND-BOUNDARY

| CONSTITUTIONAL BASIS / ARTICLE | POWER / PROCEDURE | CHECK / LIMIT | FEDERAL / RIGHTS IMPACT |
|---|---|---|---|
| QUESTION CONSTITUTIONAL ROUTE admit or establish new State Article 2 reorganise existing Indian unit Article 3 acquire foreign | BERUBARI UNION, 1960 cession of Indian territory cannot be completed through Article 3 alone. | 100TH AMENDMENT, 2015 constitutional route used for India-Bangladesh land-boundary exchange. | Article 1 can accommodate it cede Indian territory constitutional amendment under Article 368 settle uncertain boundary no cession |
| Article 1 can accommodate it cede Indian territory constitutional amendment under Article 368 settle uncertain boundary no cession | MAGANBHAI ISHWARBHAI 1969 boundary settlement differs from cession. | QUESTION CONSTITUTIONAL ROUTE admit or establish new State Article 2 reorganise existing Indian unit Article 3 acquire foreign | BERUBARI UNION, 1960 cession of Indian territory cannot be completed through Article 3 alone. |

### CONSTITUTIONAL BASIS / ARTICLE

- QUESTION CONSTITUTIONAL ROUTE admit or establish new State Article 2 reorganise existing Indian unit Article 3 acquire foreign
- Article 1 can accommodate it cede Indian territory constitutional amendment under Article 368 settle uncertain boundary no cession

### POWER / PROCEDURE

- BERUBARI UNION, 1960 cession of Indian territory cannot be completed through Article 3 alone.
- MAGANBHAI ISHWARBHAI, 1969 boundary settlement differs from cession.

### CHECK / LIMIT

- 100TH AMENDMENT, 2015 constitutional route used for India-Bangladesh land-boundary exchange.
- QUESTION CONSTITUTIONAL ROUTE admit or establish new State Article 2 reorganise existing Indian unit Article 3 acquire foreign

### FEDERAL / RIGHTS IMPACT

- Article 1 can accommodate it cede Indian territory constitutional amendment under Article 368 settle uncertain boundary no cession
- BERUBARI UNION, 1960 cession of Indian territory cannot be completed through Article 3 alone.

**MECHANISM / VERDICT —** (CESSION): The sovereignty test separates cession from boundary settlement: surrender of accepted Indian territory requires Article 368, while genuine ascertainment or implementation of a disputed boundary may proceed without constitutional amendment.

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: (CESSION): The sovereignty test separates cession from boundary settlement: surrender of accepted Indian territory requires Article 368, while genuine ascertainment or implementation of a disputed boundary may proceed without constitutional amendment.**

03

## STAGE 03 FIRST SCHEDULE AS A CONSTITUTIONAL CHANGE LEDGER

FIRST SCHEDULE AS A CONSTITUTIONAL CHANGE LEDGER · TERRITORIAL LAW UNDER ARTICLE 2 OR 3 CHANGES FIRST · STATE AND UNION-TERRITORY DESCRIPTION MAY CHANGE FOURTH SCHEDULE · RAJYA SABHA SEAT ALLOCATION MAY INCLUDE SUPPLEMENTAL, INCIDENTAL AND · ARTICLE 4 DECLARATION SUCH LAW IS NOT DEEMED AN · ORDINARY LEGISLATIVE ROUTE · ARTICLE 4 SUPPORTS TERRITORIAL REORGANISATION · IT DOES NOT BYPASS ARTICLE 368 FOR UNRELATED CONSTITUTIONAL

TERRITORIAL LAW UNDER ARTICLE 2 OR 3 changes First Schedule: State and Union-territory description may → Rajya Sabha seat allocation may include supplemental, incidental and consequential provisions → ARTICLE 4 DECLARATION such law is not deemed an Article 368 amendment → ORDINARY LEGISLATIVE ROUTE → Article 4 supports territorial reorganisation

### CONSTITUTIONAL BASIS / ARTICLE

- TERRITORIAL LAW UNDER ARTICLE 2 OR 3 changes First Schedule: State and Union-territory description may change Fourth Schedule
- Rajya Sabha seat allocation may include supplemental, incidental and consequential provisions

### POWER / PROCEDURE

- ARTICLE 4 DECLARATION such law is not deemed an Article 368 amendment
- ORDINARY LEGISLATIVE ROUTE

### CHECK / LIMIT

- Article 4 supports territorial reorganisation
- it does not bypass Article 368 for unrelated constitutional changes.

### FEDERAL / RIGHTS IMPACT

- TERRITORIAL LAW UNDER ARTICLE 2 OR 3 changes First Schedule: State and Union-territory description may change Fourth Schedule
- Rajya Sabha seat allocation may include supplemental, incidental and consequential provisions

**MECHANISM / VERDICT —** (ARCHITECTURE): Articles 1–4 move from identity and territorial composition, to external admission or establishment, to internal reorganisation, and finally to the ordinary-law consequences that amend the First and Fourth Schedules.

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: (ARCHITECTURE): Articles 1–4 move from identity and territorial composition, to external admission or establishment, to internal reorganisation, and finally to the ordinary-law consequences that amend the First and Fourth Schedules.**

04

## STAGE 04 INTEGRATION AND LINGUISTIC REORGANISATION, 1947-1956

INTEGRATION AND LINGUISTIC REORGANISATION, 1947-1956 · 1947-49 ACCESSION AND INTEGRATION OF PRINCELY STATES · 1950 PART A, B, C AND D CLASSIFICATION BEGINS · 1948 DHAR COMMISSION CAUTIONS AGAINST LANGUAGE-ONLY REORGANISATION · 1949 JVP COMMITTEE POSTPONES LINGUISTIC REORGANISATION · 1952 POTTI SRIRAMULU'S DEATH INTENSIFIES ANDHRA DEMAND · 1953 ANDHRA STATE FORMED; STATES REORGANISATION COMMISSION APPOINTED · 1955 FAZL ALI COMMISSION REPORT

1947-49 accession and integration of princely states → 1950 Part A, B, C and D classification begins → 1948 Dhar Commission cautions against language-only reorganisation → 1949 JVP Committee postpones linguistic reorganisation → 1952 Potti Sriramulu's death intensifies Andhra demand

### CONSTITUTIONAL BASIS / ARTICLE

- 1947-49 accession and integration of princely states
- 1950 Part A, B, C and D classification begins
- 1948 Dhar Commission cautions against language-only reorganisation

### POWER / PROCEDURE

- 1949 JVP Committee postpones linguistic reorganisation
- 1952 Potti Sriramulu's death intensifies Andhra demand
- 1953 Andhra State formed; States Reorganisation Commission appointed

### CHECK / LIMIT

- 1955 Fazl Ali Commission report
- 1956 States Reorganisation Act + Seventh Amendment language accepted with unity, administration and economy
- Part classifications abolished

### FEDERAL / RIGHTS IMPACT

- States and Union territories reorganised
- Language became accommodation's basis, not an automatic sole test.

**MECHANISM / VERDICT —** (LINGUISTIC): Linguistic reorganisation strengthened the Union by constitutionalising identity, but Fazl Ali's rejection of 'one language–one State' kept language subordinate to unity, viability and welfare.

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: (LINGUISTIC): Linguistic reorganisation strengthened the Union by constitutionalising identity, but Fazl Ali's rejection of 'one language–one State' kept language subordinate to unity, viability and welfare.**

05

## STAGE 05 POST-1956 MAP-MAKING: REORGANISATION, CREATION AND RENAMING

POST-1956 MAP-MAKING · REORGANISATION, CREATION AND RENAMING · 1956 SETTLEMENT · 1960 MAHARASHTRA + GUJARAT · 1963 NAGALAND · 1966 HARYANA + CHANDIGARH; PUNJAB REORGANISED · 1971 HIMACHAL PRADESH · 1972 MEGHALAYA, MANIPUR AND TRIPURA

1956 SETTLEMENT

1960 Maharashtra + Gujarat → 1963 Nagaland → 1966 Haryana + Chandigarh; Punjab reorganised

### CONSTITUTIONAL BASIS / ARTICLE

- 1956 SETTLEMENT
- 1960 Maharashtra + Gujarat
- 1963 Nagaland
- 1966 Haryana + Chandigarh; Punjab reorganised

### POWER / PROCEDURE

- 1971 Himachal Pradesh
- 1972 Meghalaya, Manipur and Tripura
- 1975 Sikkim becomes a State
- 1987 Mizoram, Arunachal Pradesh and Goa

### CHECK / LIMIT

- 2000 Chhattisgarh, Uttarakhand and Jharkhand
- 2014 Telangana
- 2019 Jammu and Kashmir reorganised into two Union territories
- RENAMING uses Article 3 when a State name changes.

### FEDERAL / RIGHTS IMPACT

- CURRENT MAP IN SOURCE: 28 States and 8 Union territories.

**MECHANISM / VERDICT —** (CURRENT): As verified on the located official record through 21 August 2026, India has 28 States and 8 Union Territories; J&K remains a UT with Legislature and Ladakh a UT without Legislature, no later official status-changing notification or order was located, and Ladakh Statehood/Sixth-Schedule demands remain dialogue rather than law.

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: (CURRENT): As verified on the located official record through 21 August 2026, India has 28 States and 8 Union Territories; J&K remains a UT with Legislature and Ladakh a UT without Legislature, no later official status-changing notification or order was located, and Ladakh Statehood/Sixth-Schedule demands remain dialogue rather than law.**

06

## STAGE 06 JAMMU AND KASHMIR REORGANISATION AS AN ARTICLE 3 STRESS TEST

JAMMU AND KASHMIR REORGANISATION AS AN ARTICLE 3 STRESS · 2019 PRESIDENT'S RULE CONTEXT · STATE LEGISLATIVE POWERS EXERCISABLE BY PARLIAMENT · J&K REORGANISATION BILL · ARTICLE 3 ROUTE FORMER STATE DIVIDED INTO · JAMMU AND KASHMIR UNION TERRITORY WITH LEGISLATURE · LADAKH UNION TERRITORY WITHOUT LEGISLATURE · FIRST SCHEDULE AND REPRESENTATIONAL CONSEQUENCES

2019 PRESIDENT'S RULE CONTEXT

State legislative powers exercisable by Parliament → J&K REORGANISATION BILL → Article 3 route former State divided into

### CONSTITUTIONAL BASIS / ARTICLE

- 2019 PRESIDENT'S RULE CONTEXT
- State legislative powers exercisable by Parliament
- J&K REORGANISATION BILL

### POWER / PROCEDURE

- Article 3 route former State divided into
- Jammu and Kashmir Union territory with legislature
- Ladakh Union territory without legislature

### CHECK / LIMIT

- FIRST SCHEDULE AND REPRESENTATIONAL CONSEQUENCES
- Does State-to-Union-territory conversion alter the federal bargain too deeply for ordinary Article 3 power?
- EXAM USE: separate procedural validity from political desirability.

### FEDERAL / RIGHTS IMPACT

- Article 3 route former State divided into

**MECHANISM / VERDICT —** (FINAL): India's territorial Constitution works best when parliamentary flexibility is joined to federal statesmanship: unity supplies the legal power, while democratic consultation supplies the legitimacy.

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: (FINAL): India's territorial Constitution works best when parliamentary flexibility is joined to federal statesmanship: unity supplies the legal power, while democratic consultation supplies the legitimacy.**

07

## STAGE 07 NEW-STATE DEMAND: DEMOCRATIC CLAIM VERSUS VIABLE FEDERAL UNIT

NEW-STATE DEMAND · DEMOCRATIC CLAIM VERSUS VIABLE FEDERAL UNIT · CLAIM FOR NEW STATE IDENTITY + DISTANCE FROM CAPITAL · CONSTITUTIONAL RESPONSE · ARTICLE 3 REORGANISATION AFTER REQUIRED CONSULTATION · TESTS ADMINISTRATIVE VIABILITY FISCAL AND RESOURCE SUSTAINABILITY MINORITY PROTECTION · SMALLER CAN IMPROVE ACCESS; IT DOES NOT AUTOMATICALLY PRODUCE

### CONSTITUTIONAL BASIS / ARTICLE

- CLAIM FOR NEW STATE identity + distance from capital + uneven development + administrative access
- CONSTITUTIONAL RESPONSE

### POWER / PROCEDURE

- Article 3 reorganisation after required consultation
- TESTS administrative viability fiscal and resource sustainability minority protection inside proposed unit water, capital, assets, debt and employees

### CHECK / LIMIT

- security and territorial integrity democratic legitimacy and transition costs
- Smaller can improve access; it does not automatically produce capacity or equality.

### FEDERAL / RIGHTS IMPACT

- CLAIM FOR NEW STATE identity + distance from capital + uneven development + administrative access
- CONSTITUTIONAL RESPONSE

**MECHANISM / VERDICT —** (FEDERAL): Article 3 is a centralising safety valve: its flexibility can absorb regional demands, but legitimacy depends on consultation, transparency and negotiated transition because affected States possess no constitutional veto.

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: (FEDERAL): Article 3 is a centralising safety valve: its flexibility can absorb regional demands, but legitimacy depends on consultation, transparency and negotiated transition because affected States possess no constitutional veto.**

08

## STAGE 08 EXACT 10/15-MARK ARCHITECTURE: FLEXIBLE TERRITORY WITHIN AN INDESTRUCTIBLE UNION

EXACT 10/15-MARK ARCHITECTURE · FLEXIBLE TERRITORY WITHIN AN INDESTRUCTIBLE UNION · 10 MARKS · 150 WORDS · 1. OPEN WITH ARTICLE 1 · UNION OF STATES, NOT A SECESSION COMPACT. · 2. DISTINGUISH ARTICLES 2, 3 AND 4. · 3. WRITE ARTICLE 3 REFERRAL AND NON-BINDING STATE VIEW.

10 MARKS / 150 WORDS → 1. Open with Article 1: Union of States, not a secession compact. → 2. Distinguish Articles 2, 3 and 4. → 3. Write Article 3 referral and non-binding State view. → 4. Add Berubari cession limit.

### CONSTITUTIONAL BASIS / ARTICLE

- 10 MARKS / 150 WORDS
- 1. Open with Article 1: Union of States, not a secession compact.
- 2. Distinguish Articles 2, 3 and 4.
- 3. Write Article 3 referral and non-binding State view.

### POWER / PROCEDURE

- 4. Add Berubari cession limit.
- 5. Conclude: flexible internal map, protected national territory.
- 15 MARKS / 250 WORDS
- 1. Map Articles 1-4 and First Schedule.

### CHECK / LIMIT

- 2. Compare admission, reorganisation, acquisition and cession.
- 3. Trace integration → linguistic settlement → post-1956 creation.
- 4. Evaluate consultation without consent as strong-Union design.
- 5. Use J&K or a new-State demand as stress test.

### FEDERAL / RIGHTS IMPACT

- 6. Balance identity, viability, consent and integrity.
- 7. Conclude: flexibility is a federal conflict-management device.

**MECHANISM / VERDICT —** 7. Conclude: flexibility is a federal conflict-management device.

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: 7. Conclude: flexibility is a federal conflict-management device.**

E

## EXTRA SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT · EXPLANATION I IS A FAVOURITE CLOSE-OPTION TRAP. · IN ARTICLE 3, 'STATE' INCLUDES UNION TERRITORIES FOR CLAUSES · THIS IS WHY PARLIAMENT MAY RESTRUCTURE UTS WITHOUT A · THE FIRST SCHEDULE AND FOURTH SCHEDULE DO DIFFERENT JOBS. · THE FIRST SCHEDULE TRACKS TERRITORIAL UNITS; THE FOURTH SCHEDULE · ARTICLE 4 LETS A REORGANISATION LAW ADJUST BOTH TOGETHER. · ORDINARY LAW IS NOT A LESSER CONSTITUTIONAL ACT IN

### OPTIONAL DOCTRINE / CASE

- Explanation I is a favourite close-option trap.
- In Article 3, 'State' includes Union Territories for clauses (a) to (e), but not for the proviso requiring reference to a State legislature.
- This is why Parliament may restructure UTs without a comparable constitutionally mandated consultation step.
- The First Schedule and Fourth Schedule do different jobs.

### ADVANCED LIMIT

- The First Schedule tracks territorial units: the Fourth Schedule tracks Rajya Sabha seat allocation.
- Article 4 lets a reorganisation law adjust both together.
- Ordinary law is not a lesser constitutional act in this chapter.
- An Article 3 law is ordinary in voting threshold, but constitutional in subject matter.

### COMPARATIVE NUANCE

- That is why it can lawfully redraw the map while still remaining outside Article 368.
- Berubari is not just a territorial case.
- It also teaches exam method: identify whether the question is about internal diminution, cession, or interpretive use of
- a case in another topic such as the Preamble.

**OPTIONAL STATUS —** This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.

END OF MASTER CANVAS • poster embeds this exact master • tiled pages are overlapping crops of the same pixels